

Court No. - 3

Case :- WRIT - C No. - 20050 of 2016

Petitioner :- Virendra Kumar

Respondent :- State Of U.P. Through Principal Secretary And 3 Others

Counsel for Petitioner :- Prashant Sharma, Pankaj Sharma

Counsel for Respondent :- C.S.C.

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for the Dakshinanchal Vidyut Vitran Nigam Ltd.

Admittedly, with respect to the amount of the bill raised by the respondent, Corporation, the petitioner had earlier approached this Court by filing a Writ -C No. 11404 of 2016, which was disposed of by giving liberty to file objection under the provisions of 6.5 of the U.P. Electricity Supply Code, 2005 (in short the Code, 2005). In accordance with liberty, the petitioner has given his objection on 28.3.2016 and now the petitioner has approached this Court seeking mandamus to command the respondent to decide the objection and to restore the electricity connection, inasmuch as entire livelihood of the petitioner and his family members is effected on account of non supply of the electric energy.

We fail to understand when Clause 6.5 of the Code, 2005 provides 7 days' time for taking a decision then how the matter is pending for such a long time.

In view of the facts and circumstances of the case, we dispose of the writ petition with a direction to the respondent no. 3 to take a decision on the objection filed by the petitioner within a week from the date of production of a certified copy of this order.

Order Date :- 3.5.2016

A. Pt. Singh